

SOFTWARE AS A SERVICE AGREEMENT

This agreement (the "Agreement") is made between Tessellate Retail Limited ("Customer") and Lumen Cloud Pty Ltd ("Supplier").

1. Definitions and Interpretation

1.1 "Confidential Information" means all information disclosed by one party to the other that is marked confidential or would reasonably be understood to be confidential.

1.2 Clause headings are for convenience only and do not affect interpretation.

2. Services

2.1 Supplier shall provide the Services described in each Statement of Work with reasonable skill and care.

2.2 Supplier shall comply with all applicable laws in performing the Services.

3. Term and Termination

3.1 This Agreement commences on the Effective Date and continues for an initial term of two (2) years (the "Initial Term").

3.2 This Agreement shall expire at the end of the Initial Term unless the parties agree in writing to extend it.

3.3 Either party may terminate this Agreement for convenience on six (6) months' written notice to the other.

3.4 Either party may terminate this Agreement immediately on written notice if the other party commits a material breach which is not remedied within thirty (30) days of notice.

4. Fees and Payment

4.1 Customer shall pay each valid invoice within forty-five (45) days of receipt.

4.2 All sums are exclusive of VAT, which shall be payable in addition at the applicable

rate.

5. Confidentiality

5.1 Each party shall keep the other party's Confidential Information confidential and shall not disclose it except as permitted by this clause.

5.2 The obligations in this clause survive termination or expiry of this Agreement for a period of five (5) years.

6. Data Protection

6.1 Each party shall comply with applicable Data Protection Laws in connection with this Agreement.

6.2 Supplier shall process Customer Personal Data only on Customer's documented instructions and shall implement appropriate technical and organisational measures.

7. Indemnities

7.1 Supplier shall indemnify Customer against all losses arising from any claim that the Services infringe a third party's intellectual property rights.

7.2 The indemnified party shall notify the indemnifying party promptly of any claim.

8. Limitation of Liability

8.1 Nothing in this Agreement limits liability for death or personal injury caused by negligence, for fraud, or for any liability which cannot be limited by law.

8.2 Subject to the preceding sub-clause, each party's total aggregate liability under or in connection with this Agreement in any Contract Year shall not exceed one hundred and twenty-five (125) per cent of the Fees paid or payable in that Contract Year.

8.3 Neither party shall be liable for any indirect or consequential loss.

9. Restrictive Covenants

9.1 For twelve (12) months after termination, Supplier shall not provide competing services to any Restricted Customer.

9.2 Supplier acknowledges that these restrictions are reasonable and necessary to protect Customer's legitimate business interests.

10. Assignment

10.1 Either party may assign this Agreement to any person on written notice to the other party.

11. Governing Law and Disputes

11.1 Any dispute arising out of this Agreement shall be finally resolved by arbitration under the LCIA Rules, seated in London. This Agreement is governed by the laws of the State of New York.

IN WITNESS WHEREOF the parties have executed this Agreement.